

**Court No. - 29**

**Case :-** WRIT - C No. - 64854 of 2006

**Petitioner :-** Om Sons India Handicraft Manufacturers And Others

**Respondent :-** State Of U.P. And Others

**Counsel for Petitioner :-** Surya Narayan

**Counsel for Respondent :-** C.S.C.,A.K. Mehrotra

**Hon'ble Tarun Agarwala,J.**

**Hon'ble Abhai Kumar,J.**

The case is passed over on the illness slip of learned counsel for the petitioners.

**Order Date :-** 11.1.2017

Israr

**(Abhai Kumar, J)      (Tarun Agarwala, J.)**

**Court No. - 29**

**Case :-** WRIT - C No. - 64854 of 2006

**Petitioner :-** Om Sons India Handicraft Manufacturers And Others

**Respondent :-** State Of U.P. And Others

**Counsel for Petitioner :-** Surya Narayan

**Counsel for Respondent :-** C.S.C.,A.K. Mehrotra

**Hon'ble Tarun Agarwala,J.**

**Hon'ble Abhai Kumar,J.**

The case is passed over on the illness slip of learned counsel for the petitioners.

**Order Date :- 16.2.2017**

**Sanjeev**

(Abhai Kumar, J.) (Tarun Agarwala,J.)

**Court No. - 35**

**Case :-** WRIT - C No. - 64854 of 2006

**Petitioner :-** Om Sons India Handicraft Manufacturers And Others

**Respondent :-** State Of U.P. And Others

**Counsel for Petitioner :-** Surya Narayan

**Counsel for Respondent :-** C.S.C.,A.K. Mehrotra

**Hon'ble Bharati Sapru,J.**

**Hon'ble Shashi Kant,J.**

List in the next cause list showing the name of Shri Awadhesh Kumar as learned counsel for the Power Corporation.

Learned counsel for the petitioner shall inform the other side and obtain a receipt thereof that the matter will be taken up in the next cause list.

**Order Date :-** 4.4.2017

pks

**Court No. - 35**

**Case :-** WRIT - C No. - 64854 of 2006

**Petitioner :-** Om Sons India Handicraft  
Manufacturers And Others

**Respondent :-** State Of U.P. And Others

**Counsel for Petitioner :-** Surya Narayan

**Counsel for Respondent :-** C.S.C.,A.K.  
Mehrotra

**Hon'ble Bharati Sapru,J.**

**Hon'ble Shashi Kant,J.**

List again showing name of Sri Awdhesh Mishra,  
Advocate as counsel for the Power Corporation.

**Order Date :-** 17.4.2017

A. Verma

**Court No. - 35**

**Case :-** WRIT - C No. - 64854 of 2006

**Petitioner :-** Om Sons India Handicraft Manufacturers And Others

**Respondent :-** State Of U.P. And Others

**Counsel for Petitioner :-** Surya Narayan

**Counsel for Respondent :-** C.S.C.,A.C.Nigam,A.K. Mehrotra

**Hon'ble Bharati Sapru,J.**

**Hon'ble Shashi Kant,J.**

List in the next cause list showing the name of Shri A.K. Saxena as learned counsel for the respondent. The petitioner may inform the other side about this order in writing and obtain a receipt thereof.

The name of Shri A.C. Nigam be deleted as learned counsel for the respondent.

**Order Date :-** 9.5.2017

pks

**Court No. - 35**

**Case :-** WRIT - C No. - 64854 of 2006

**Petitioner :-** Om Sons India Handicraft Manufacturers And Others

**Respondent :-** State Of U.P. And Others

**Counsel for Petitioner :-** Surya Narayan

**Counsel for Respondent :-** C.S.C.,A.C.Nigam,A.K. Mehrotra

**Hon'ble Bharati Sapru,J.**

**Hon'ble Shashi Kant,J.**

List revised.

Shri A.K. Saxena, learned counsel for the respondent is not present.

List in the next cause list.

Learned counsel for the petitioner shall inform the other side that the matter will be taken up in the next cause list in writing and obtain a receipt thereof.

**Order Date :-** 18.5.2017

pks

**Court No. - 58**

**Case :-** WRIT - C No. - 64854 of 2006

**Petitioner :-** Om Sons India Handicraft Manufacturers And Others

**Respondent :-** State Of U.P. And Others

**Counsel for Petitioner :-** Surya Narayan

**Counsel for Respondent :-** C.S.C.,A.K. Mehrotra,A.K.Saxena

**Hon'ble Shabihul Hasnain,J.**

**Hon'ble Krishna Pratap Singh,J.**

List has been revised.

Heard Sri Surya Narayan, learned counsel for the petitioners, who has been present on both the occasions but nobody appears for the respondents.

The matter relates to the year 2006. It is desirable that such matters may be heard and decided in the interest of justice. Sri Surya Narayan has submitted that opposite party No.6 has forwarded a bill along with surcharge amount. No counter affidavit has been filed despite the fact that time was granted to them on 28.11.2006. Petitioner has contended that he has paid the entire amount along with surcharge under protest with the opposite parties. At the same time, he has also moved representation before the Executive Engineer concerned to decide whether surcharge was levy-able upon the petitioner. Petitioner has submitted that according to clause 6.7 of Uttar Pradesh Electricity Supply Code 2005 petitioner should have been given an opportunity of hearing before levying surcharge, which has not been done. Further, he says that according to Supreme Court surcharge was not levy-able at all.

Be that as it may, since no counter affidavit has been filed and this petition is pending before this Court since 2006, it will be appropriate that the matter may be remitted back to the concerned Executive Engineer to take decision on the application of the petitioner which he has moved on 30.10.2006 and 3.11.2006. If such an application is not traceable, the petitioner shall be at liberty to move fresh representation within a month from today. If fresh representation is moved as aforesaid, the same shall be decided expeditiously by the Executive Engineer concerned within a maximum period of two months from the date a certified copy of this order along with the representation is moved before the authority concerned.

With this observation the petition stands **disposed of**.

**Order Date :-** 19.7.2017/RKM.